

Jamshed Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 March 2021 · WRIT - C No. 8342 of 2021 · **Relegated to clause 6.5; recovery stayed six weeks.**

HEADNOTE

A Division Bench of the Allahabad High Court declined to examine on writ the consumers' grievances arising from a recovery notice dated 18.09.2020 and held that the appropriate course was a representation to the Executive Engineer under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. Recovery under that notice was stayed for six weeks or until the Engineer's decision; if no objection was filed, the licensee could proceed in accordance with law.

FACTUAL SUMMARY

Jamshed Khan and seven others invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and officers of Poorvanchal Vidyut Vitran Nigam Limited, including the Executive Engineer of the distribution division at Zamania, District Ghazipur. The petition arose from grievances connected with a recovery notice dated 18 September 2020. The Court did not record the billed demand or inquire into the correctness of that notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause 6.5 as alternate remedy to writ; stay of recovery pending EE decision

HOLDING

Where consumers challenged recovery under a notice dated 18.09.2020 by writ, the High Court held it appropriate that they approach the Executive Engineer under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. Recovery under that notice was stayed for six weeks or until a fresh decision by the Executive Engineer; if the consumers filed no objection, the licensee was free to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ was not decided on the merits of the 18.09.2020 recovery notice; the consumers were directed to take recourse to the Executive Engineer under clause 6.5. ¶ 1

clause-6.5-representation-executive-engineer The Court named the Executive Engineer, Vidyut Gramin Nagriya Vitran Khand, PuVVNL, Zamania, Ghazipur, as the clause 6.5 authority to whom the consumers were to object. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RECOVERY NOTICE DATED 18.09.2020 AND THE UNDERLYING BILLING DISPUTE

The writ was disposed by remitting the consumers to clause 6.5 without examining the merits of the notice. ¶ 1